

		6. Deposition excerpts from Rich Carroll and other witnesses concerning the photographs. the drain condition, and the chronology of events 7. Additional emails, photographs. correspondence, and documentary evidence omitted from the prior exhibit list by former counsel. 8. Plaintiff's May 8, 2021, written communications to Rich Carroll, sent immediately following Plaintiff's hospitalization, notifying Rich Carroll that Defendants debris remained over Plaintiff's drain, informing him and demanding immediate removal of the debris. These communications are highly probative of Defendants' notice, knowledge, opportunity to preserve evidence, and failure to promptly remedy the hazardous condition. (See Reply, pgs. 1-3; see also Decl. of Kimes ISO Reply, ¶¶ 6-15). There are various issues with the Reply and declaration in support of the Reply. First, Plaintiff failed to mention any of these exhibits and witnesses in his motion (other than his vague reference to “medical evidence” that was obtained after the cut-off). Defendants were not provided with an opportunity to address any of this in their Opposition. (See <i>Jay v. Mahaffey</i> (2013) 218 Cal.App.4th 1522, 1537 [“The general rule of motion practice, which applies here, is that new evidence is not permitted with reply papers.”]). Second, Plaintiff still does not explain why discovery needs to be reopened (assuming this is the relief he is requesting) because of a December 2025 ER visit. Finally, all the other witnesses and exhibits identified in the Reply brief and in Plaintiff's declaration do not relate to the medical evidence that Plaintiff referred to in his motion. Accordingly, the motion is denied. Defendant shall give notice of both rulings.
9	S. vs. DOE 1	CONTINUED TO 7/16/26 IN DEPT. CM02

10	Sweet vs. Newport Pontoons	TENTATIVE RULING: <u>Motion for Leave to Amend</u> Plaintiff Monica Sweet moves for leave to file a proposed second amended complaint. For the following reasons, the motion is GRANTED. <u>Proposed SAC</u> The Proposed SAC adds the general negligence claim inadvertently not included in the operative FAC, reflects the dismissal of Defendant Newport Fun Tours & Rentals, and incorporates the two Doe Defendants who had been previously identified: Krista Keshishian (Doe 4) and Unique Fitness Solutions (Doe 3). <u>Motions for Leave to Amend</u> Civil Procedure Code Section 473(a)(1) provides that “[t]he court may . . . in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading” The court’s discretion will usually be exercised liberally to permit amendment of the pleadings. (<i>Howard v. County of San Diego</i> (2010) 184 Cal.App.4th 1422, 1428.) The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified. (<i>Ibid.</i>) The court will usually not consider the validity of the proposed amended pleading in deciding whether to grant leave to amend. The preferred practice is to “permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings. [Citation omitted.] (<i>Kittredge Sports Co. v. Super. Ct.</i> (1989) 213 Cal.App.3d 1045, 1048.) Denying a motion for leave to amend based on the validity of a proposed amendment is most appropriate “in cases in which the insufficiency of the proposed amendment is established by controlling precedent and where the insufficiency could not be cured by further appropriate amendment.” (<i>California Casualty Gen. Ins. Co. v. Superior Court</i> (1985) 173 Cal.App.3d 274, 280-81 [disapproved on other grounds by <i>Kransco v. American Empire Surplus Lines Ins. Co.</i> (2000) 23 Cal.4th 390].) <u>Procedural Requirements</u> A motion to amend a pleading before trial must: (1) include a copy of the proposed amendment or amended pleading, which must be
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